

# CORRECTED

1 ENGROSSED HOUSE  
2 BILL NO. 3974

By: Caldwell (Trey), Cantrell,  
Kane, and Strom of the  
House

3  
4 and

Paxton of the Senate

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7  
8 An Act relating to the Governmental Tort Claims Act;  
9 amending 51 O.S. 2021, Section 153.1, which relates  
10 to actions associated with the housing of inmates;  
11 limiting actions to specific incarcerating entity;  
12 and declaring an emergency.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 51 O.S. 2021, Section 153.1, is  
15 amended to read as follows:

16 Section 153.1. A. Nothing in the Governmental Tort Claims Act  
17 shall be construed as allowing an action or recovery against this  
18 state, against any city, town or county that is the sole beneficiary  
19 of a public trust, or against any employee of this state or any  
20 city, town or county of this state due to the housing of federal  
21 inmates or inmates from another state in facilities owned or  
22 operated by private prison contractors. If a public trust that has  
23 as its sole beneficiary a city, town or county has a facility that  
24 houses federal inmates or inmates from another state, the immunity

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provided for in the Governmental Tort Claims Act shall ~~not~~ apply to that trust.

B. In an instance of a shared inmate housing facility by any combination of the state, cities, counties, or tribes any otherwise allowable action or recovery by or on behalf of an inmate, shall be limited to the specific state, city, county or tribes responsible for placing the inmate in such shared inmate housing facility.

SECTION 2. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 25th day of March, 2026.

\_\_\_\_\_  
Presiding Officer of the House  
of Representatives

Passed the Senate the \_\_\_\_\_ day of \_\_\_\_\_, 2026.

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Presiding Officer of the Senate